

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KAMI KINKAID,

Petitioner

VS.

RICHARD KIM,

Respondent

) Case Number: FDI-25-800862

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF RFO FOR CUSTODY AND VISITATION CHILD CUSTODY,
VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Kami Kinkaid and Respondent, Richard Kim. They share two minor children: Tatum (DOB: 5/28/11) and Nelson (DOB: 4/19/15).
- 2) On 1/24/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/13/08 and date of separation is March 2023 for a marriage of 14 years and 7 months.
- 3) On 3/25/25, Respondent filed a Response and Request for Dissolution also indicating the date of marriage is 9/13/08 and date of separation is March 2023 for a marriage of 14 years and 7 months.
- 4) On 05/19/26 Father filed a Request for Order seeking initial child custody and visitation orders. In particular, Father is seeking joint legal and joint physical custody of the minor children. As to parenting time, he is seeking an order that each parent have the children every other week from Sunday at 7:00 p.m. to the following Sunday at 7:00 p.m. Matter was set for hearing on 07/06/26.

- 5) On 06/18/26, Mother filed a Responsive Declaration to Father's RFO. Mother is asking this Court for a Tier II interview of the children for them to express their preference. Mother states that Father has not exercised much timeshare over the last three years. Mother believes that Father has filed this motion in an effort to reduce his child support obligation.
- 6) On 06/25/26, Father filed a Reply to Mother's Responsive Declaration in which he disputes some of Mother's allegations.
- 7) On 07/06/26, the parties appeared at the Readiness hearing and the Court referred the parties to FCS Mediation to occur on August 17, 2026. The Court also scheduled a return for September 17, 2026.
- 8) On 07/06/26, Mother filed a Declaration of Petitioner re: Living conditions at Respondent's home and further support for Tier II with interviews of the children.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Mother's request for a Tier II interview of the children is DENIED.
- 3) Father's request for joint custody is GRANTED. Both parents shall share joint legal and joint physical custody of both minor children.
- 4) As to Tatum, Father's parenting time shall be at Tatum's discretion. She is old enough to determine when she wishes to see her Father and she is able to go between Mother and Father's households at her discretion. The parents shall coordinate exchange times, exchange locations and pick up times for Tatum.
- 5) As to Nelson, Father's parenting time shall be on a week on/week off schedule. The exchange time shall be 6:00 p.m., on Sundays. Father's first week shall commence on Sunday, September 20, 2026 at 6:00 p.m. The receiving parent shall pick up the minor child from the other parent's home.
- 6) Counsel for Respondent/Father shall prepare the Findings and Order After Hearing.

1 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).